

25SMCV01924 25SMCV01924

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-06-26

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Case Number: 25SMCV01924 Hearing Date: June 26, 2026 Dept: M

CASE NAME: Khorsandi, v. Frankel, et al.

CASE NO.: 25SMCV01924

MOTION: Demurrer to the First Amended Complaint

HEARING DATE: 6/26/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendants Andrew

Frankel M.D. and Lasky Clinic Surgical Center Inc. demur and move to strike Plaintiff Lida Khorsandi's First Amended Complaint (“FAC”).

Second Cause of Action for Fraud

The elements of fraud are: “(a) misrepresentation (false representation, concealment, or

nondisclosure);

(b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce

reliance;

(d) justifiable reliance; and (e) resulting damage." (Charnay v. Cobert (2006) 145

Cal.App.4th 170, 184.) To advance a cognizable fraud claim, "every element of the cause of action . . . must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a fraud claim deficient in any material respect." (Wilhelm v. Pray, Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1331.) The heightened particularity requirement necessitates pleading facts that "show how, when, where, to whom, and by what means the representations were tendered." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) When fraud is alleged against a corporate defendant, the plaintiff must specifically allege the names of the persons who allegedly made the representation, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mutual Auto Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

The FAC fails to allege

fraud with the requisite specificity. The FAC generally alleges that "Defendant knowingly made false representations about being a double board-certified plastic surgeon and ENT." (FAC at 2:9-10.) While presumably "Defendant" means Dr. Frankel, and he presumably made these representations to Plaintiff (though this is also unclear), the FAC does not plead how, when, where, and by what means Dr. Frankel made this representation. Thus, further facts are required to meet the heightened pleading standard.

Further, the FAC fails to establish the falsity of that representation. The FAC admits that Dr. Frankel is a certified plastic surgeon. Instead, when alleging falsity, the FAC relies on an entirely different material fact, that Dr. Frankel did not disclose that he acquired his license after 2001 and was not subject to continual education. "Defendant did not specify that his license was acquired before 2001, which means he does not have to undergo continual education like his colleagues who may have gotten their licenses to practice well after him. Plastic surgeons who have recently become certified must undergo continual education frequently to maintain their knowledge and ensure that their abilities are to date." (FAC, at 2:11-15.) Thus,

the falsity of the above pled representation is not established. Additionally, Plaintiff has not pled that Dr. Frankel misrepresented when he got his license or whether he was subject to continuing education. The FAC also alleges that Defendant “misled Plaintiff into thinking that because he is double board-certified, he must follow all the rules required of his profession.” (FAC at 2:21-22.) Not only is this misrepresentation not established with specificity, the FAC concedes that Dr. Frankel was following the rules of his profession, since he was not required to undergo continual education. Thus, the new alleged misrepresentations do not support the cause of action.

Accordingly, the demurrer is SUSTAINED with 20 days' leave to amend.

Third

Cause of Action for IIED

A cause of action for intentional infliction of emotional distress (“IIED”) exists when there is: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050- 1051.) A defendant's conduct is “outrageous” when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Ibid.) The defendant must either intend his or her conduct to inflict injury or engaged in it with the realization that injury will result. (Ibid.) Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Ibid.) Generally, the question of whether conduct is in fact outrageous is a question of fact to be determined beyond the pleading stage. (So v. Shin (2013) 212 Cal.App.4th 652.) Nonetheless, “[w]hile those cases say that it is ‘usually’ a question of fact, several cases have dismissed intentional infliction of emotional distress claims on demurrer, concluding that the facts allege did not amount to outrageous conduct as a matter of law.” (Barker v. Fox & Associates (2015) 240 Cal.App.4th 333, 355-356.) “Severe emotional distress means emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1004.)

The FAC fails to establish extreme and outrageous conduct and intent of causing, or reckless disregard of the probability of causing, emotional distress. The FAC only alleges a conclusion that Defendant displayed “reckless disregard of the probability of causing emotional distress” because “as a double board-certified ENT and Plastic Surgeon, he should have been more careful with his conduct during the procedure.” (FAC at 3:23-24.) The fact that Dr. Frankel “should have been more careful” sounds in medical negligence, and presents no facts suggesting that he recklessly disregarded any probability of causing emotional distress. Further facts are required to establish his reckless disregard.

Accordingly, the demurrer is SUSTAINED with 20 days' leave to amend.

Motion
to Strike

The FAC's punitive damages request is improper, as the claims arise out of professional negligence. (CCP § 425.13.) Accordingly, the motion to strike is GRANTED without leave to amend.

Plaintiff has 20 days to file an amended complaint.